

HOUSE No. 5347

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, April 9, 2026.

The committee on Consumer Protection and Professional Licensure, to whom was referred the petition (accompanied by bill, House, No. 5084) of David T. Vieira, Steven George Xiarhos and Dylan A. Fernandes (by vote of the town) that the town of Bourne be authorized to grant a non-transferable license for the sale of alcoholic beverages not to be drunk on the premise in said town, reports recommending that the accompanying bill (House, No. 5347) ought to pass [Local Approval Received].

For the committee,

TACKEY CHAN.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of Bourne to grant an additional license for the sale of alcoholic beverages not to be drunk on the premises.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding section 17 of chapter 138 of the General Laws, the
2 licensing authority of the Town of Bourne may grant 1 additional license for the sale of all
3 alcoholic beverages not to be drunk on the premises pursuant to section 15 of said chapter 138 to
4 Sea State Foods, LLC, d/b/a Cataumet Fish, located at 1360 Route 28A, Cataumet, in the town
5 of Bourne. The license granted pursuant to this act shall be subject to all of said chapter 138
6 except said section 17.

7 (b) The licensing authority shall not approve the transfer of a license granted pursuant to
8 this act to any other location, but it may grant the license to a new applicant at the same location
9 if the applicant files with the licensing authority a letter from the department of revenue and a
10 letter from the department of unemployment assistance indicating that the license is in good
11 standing with those departments and that all applicable taxes, fees and contributions have been
12 paid.

13 (c) If a licensee terminates or fails to renew a license granted under this act or any such
14 license is cancelled, revoked or no longer in use, it shall be returned physically, with all of the
15 legal rights, privileges and restrictions pertaining thereto, to the licensing authority which may,
16 within 3 years after such return, then grant the license to a new applicant at the same location and
17 under the same conditions as specified in this section, otherwise such license shall dissolve.

18 (d) The license granted under this act shall be issued within 1 year after the effective date
19 of this act; provided, however, that if the license is originally granted within that time period, it
20 may be granted to a new applicant under subsections (b) and (c) thereafter.

21 SECTION 2. This act shall take effect upon its passage.